

Determination that Only One Source is Reasonably Available (Including Brand Name) – FAR Part 12 Acquisitions under the SAT

MEMORANDUM TO THE FILE

Subj: DETERMINATION THAT ONLY ONE SOURCE IS REASONABLY AVAILABLE FOR A FAR PART 12 ACQUISITION COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

I. BACKGROUND:

1. As required by FAR 12.102(a) this memorandum documents the determination that, for this acquisition valued at or below the Simplified Acquisition Threshold (SAT), only one source is reasonably available. This memorandum further outlines the basis supporting that determination.

II. DESCRIPTION OF ITEM OR SERVICE:

Marine Depot Maintenance Command (MDMC) is requesting the procurement of the Keysight N7800A Calibration and Adjustment Software in order for the instrument to run efficiently and effectively.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING *(select all that apply)*:

A. X **ONLY ONE RESPONSIBLE SOURCE** *(select all that apply)*:

1. RESTRICTIVE RIGHTS. The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.
2. X EXCLUSIVE LICENSING AGREEMENTS. The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

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Keysight Technologies, Inc. was verified to be the sole-source provider for the item and software being requested via email on 4/2/2026.

The purchase of the Keysight Calibration L8license is urgently required to restore the calibration capability at the USMC 29 palms Calibration lab, which has been non-operational due to the inability to process the MCTSP N8787A power Sensor pending the required software license. The single power sensor serves as the primary calibration standard for multiple lines of test equipment supporting communication systems. Additional delays will continue to increase the provided backlog of workorders which will affect mission readiness and operational support.

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3. OTHER REASONS.

B. BRAND NAME

Item required must be a brand name, product, or feature of a product, particular to one manufacturer.

C. URGENT AND COMPELLING. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage, or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

1. Date on which the requirement was first identified:
2. Required delivery date/period of performance:
3. Explanation of why delivery/commencement of services by the date mentioned above is required:

V. CERTIFICATIONS:

A. Technical / Requirements Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.

ROWLAND.PATRICIA.K.1203635601
CIA.K.1203635601

Digitally signed by
ROWLAND.PATRICIA.K.1203635601
Date: 2026.04.16 10:44:13 -04'00'

Patricia Kay Rowland / 229-639-7789

16 April 2026

Signature

Name (Printed) / Phone #

Date

B. Contracting Officer Certification: I certify that this justification is accurate and complete to the best of my knowledge and belief.

RADI.MATTHEW.S.1284456935
COTT.1284456935

Digitally signed by
RADI.MATTHEW.S.1284456935
Date: 2026.04.16 10:20:41 -04'00'

GySgt Matthew S. Radi / 229-639-8183

16 April 2026

Signature

Name (Printed) / Phone #

Date

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